Electoral Politics

The big idea

In a large democracy, all citizens cannot sit together and make every decision. So they choose **representatives** through **elections**. This chapter explains why elections are needed, how India's election system works, the role of the **Election Commission**, and how we can judge whether elections are **free and fair**.

Why elections?

An **election** is a mechanism by which people choose their representatives at regular intervals and change them if they wish. In an election voters can:

- choose who will make laws for them;
- choose who will form the government and take major decisions;
- choose the party whose policies will guide the government and law-making.

Example: Haryana, 1987. Chaudhary Devi Lal, leader of the **Lok Dal**, led the "**Nyaya Yudh**" (struggle for justice) and promised to waive the loans of farmers and small businessmen. His party and its partners won **76 out of 90 seats**. He became Chief Minister and waived loans of up to Rs 10,000. In 1991, the party lost popularity and lost the election. This shows how elections let people reward or punish rulers.

What makes an election democratic?

1. Everyone should be able to choose: **one person, one vote, every vote of equal value**.
2. There should be something to choose from: parties and candidates should be free to contest, offering real choice.
3. The choice should be offered at **regular intervals** (every few years).

4. The candidate preferred by the people should get elected.
5. Elections should be conducted in a **free and fair** manner.

Is political competition good? Demerits: it creates disunity and **factionalism**; parties and leaders level allegations against each other; it encourages dirty tricks; long-term policies are ignored. Merits: regular electoral competition gives incentives to parties and leaders to serve people; they know they will be judged by voters. Our Constitution makers chose competition because it works like an incentive, just as businesses compete for customers.

Election system in India

- **Lok Sabha** and **Vidhan Sabha** (Assembly) elections are held every **five years**. When elections are held in all constituencies at the same time, it is a **general election**. When held for one constituency to fill a vacancy (death or resignation of a member), it is a **by-election**.

Electoral constituencies: the country is divided into areas for elections, called **constituencies**. Voters in one area elect one representative.

- **Lok Sabha**: India is divided into **543** constituencies; the representative is a **Member of Parliament (MP)**.
- Each state is divided into **Assembly constituencies**; the representative is a **Member of Legislative Assembly (MLA)**.
- Each Parliamentary constituency has several Assembly constituencies within it. Panchayats and municipalities also have wards.
- Constituencies should have roughly equal population, so every vote has equal value.

Reserved constituencies: some constituencies are reserved for **Scheduled Castes (SC)** and **Scheduled Tribes (ST)**: only someone belonging to these groups can stand there, but all voters vote. In the Lok Sabha, **84 seats** are reserved for SC and **47** for ST (as of 2019). In many states, one-third of seats in

rural and urban local bodies are reserved for **women**; similar reservation exists for OBCs in some states.

Voters' list (electoral roll): a list of those eligible to vote, prepared well before the election. All citizens aged **18 years and above** can vote, irrespective of caste, religion or gender (**universal adult franchise**). Some criminals and persons of unsound mind can be denied the vote in rare cases. The list is revised regularly. The government has introduced the **Election Photo Identity Card (EPIC)**; voters may also show other identity proofs such as ration card or driving licence.

Nomination of candidates: anyone who can be a voter can also contest if they are **25 years** or older (for Lok Sabha and Vidhan Sabha). Parties nominate candidates, who get the party's **symbol** and support; this nomination is called a party **"ticket"**. Every candidate must fill a nomination form, pay a **security deposit**, and give a legal declaration with full details of:

- serious **criminal cases** pending against them;
- details of **assets and liabilities** of the candidate and family;
- **educational qualifications**.
  This information is made public. There is no educational qualification required to contest, because it would deny the right to contest to many citizens and is not relevant to representing people.

Election campaign: usually lasts about **two weeks** between the announcement of the final list of candidates and the date of polling. Famous slogans: **"Garibi Hatao"** (Remove poverty) by the Congress under **Indira Gandhi** in **1971**; **"Save Democracy"** by the **Janata Party** in **1977** (after the Emergency); "**Land to the tiller**" by the Left Front in West Bengal (1977); "**Protect the self-respect of the Telugus**" by **N.T. Rama Rao** of the **Telugu Desam Party** in Andhra Pradesh (1983).

Code of Conduct: According to election law, no party or candidate can bribe or threaten voters, appeal on the basis of caste or religion, use government resources for campaigning, or spend more than **Rs 25 lakh** in a Lok Sabha constituency or **Rs 10 lakh** in an Assembly constituency (limits in the textbook; revised since). Under the **Model Code of Conduct**, no party can use places of

worship for propaganda, or use government vehicles, aircraft or officials; once elections are announced, ministers cannot lay foundation stones, take big policy decisions or make promises of public facilities.

Polling and counting: voters go to the **polling booth**, their identity is checked, a mark is put on their finger with **indelible ink**, and they cast their vote. Earlier ballot papers were used; now **Electronic Voting Machines (EVMs)** are used. After polling, EVMs are sealed and kept safe; votes are counted, and the candidate with the **highest votes** in a constituency is declared elected (first-past-the-post).

The Election Commission

India's elections are conducted by an **independent and very powerful Election Commission (EC)**. It enjoys the same independence as the judiciary. The **Chief Election Commissioner (CEC)** is appointed by the **President of India**, but once appointed is **not answerable** to the President or the government; it is very difficult to remove the CEC.

Powers and functions:

- Takes decisions on every aspect of conduct and control of elections, from the announcement to the declaration of results.
- Implements the **Code of Conduct** and punishes any candidate or party that violates it.
- During elections, can order the government to follow guidelines, to prevent misuse of government power, or transfer government officials.
- Government officers on election duty work under the **control of the EC**, not the government.
- Can order a **re-poll** if polling was unfair in some booths or constituencies.

Free and fair elections

Popular participation: in India, the **turnout** (percentage of eligible voters who actually vote) has been stable or rising, unlike in many Western democracies. In India the poor, illiterate and underprivileged vote in larger proportion than the rich. Common people attach great importance to elections and feel they can influence the government. Interest in election-related activities has been increasing.

Acceptance of results: ruling parties routinely lose elections in India at national and state level (about half the time). Candidates who spend a lot of money or have criminal links often lose. Losing parties accept the people's verdict, barring some disputed cases.

Challenges to free and fair elections:

- Candidates and parties with a lot of **money** may not be sure of victory but enjoy an unfair advantage.
- Candidates with **criminal connections** have been able to push others out.
- Some families tend to dominate parties; tickets go to relatives.
- Very often elections offer little choice to ordinary citizens, as major parties have similar policies.
- Smaller parties and independent candidates suffer a huge disadvantage compared to bigger parties.

RESERVED SEATS DO NOT MEAN RESERVED VOTERS

In a constituency reserved for SC, only an SC person can **contest**, but **all** registered voters of that area vote.

BOARD FAVOURITE

"Describe the powers and functions of the Election Commission" and "What makes elections in India democratic?" are long-answer favourites. Use the five conditions of a democratic election.

Quick recap

- Elections let people choose lawmakers, government and policies, and change them.
- 543 Lok Sabha constituencies; reserved seats for SC/ST; voting age 18, contesting age 25.
- Candidates declare criminal cases, assets and education.
- Election Commission: independent; CEC appointed by the President but not answerable to the government; can order re-polls.
- Indian elections are largely free and fair, but money power and criminal candidates are challenges.

Practice questions

1. Into how many constituencies is India divided for Lok Sabha elections?
   (a) 250 (b) 545 (c) 543 (d) 552
2. The slogan "Garibi Hatao" was given by
   (a) the Janata Party in 1977 (b) the Congress under Indira Gandhi in 1971 (c) the Telugu Desam Party in 1983 (d) the Lok Dal in 1987
3. The minimum age to contest a Lok Sabha election is
   (a) 18 years (b) 21 years (c) 30 years (d) 25 years
4. The Chief Election Commissioner of India is appointed by
   (a) the Prime Minister (b) the Chief Justice of India (c) the President of India (d) the Lok Sabha
5. An election held in one constituency to fill a vacancy caused by death or resignation is called
   (a) general election (b) mid-term poll (c) referendum (d) by-election
6. Which of these must candidates declare when filing their nomination?
   (a) Details of serious criminal cases, assets and liabilities, and educational qualifications (b) Their caste certificate only (c) A letter from the Prime Minister (d) The names of all voters in their constituency
7. The "Nyaya Yudh" in Haryana in 1987 was led by
   (a) N.T. Rama Rao (b) Indira Gandhi (c) Jawaharlal Nehru (d) Chaudhary Devi Lal
8. What are the powers and functions of the Election Commission of India?
9. Why are some constituencies reserved for SC and ST? Can all voters vote in such constituencies?

Answers: 1. c 2. b 3. d 4. c 5. d 6. a 7. d 8. see notes 9. see notes